



SPONSOR: Sen. Hoffner & Rep. K. Johnson
Sens. Huxtable, Pinkney, Wilson; Reps. Romer,
Ross Levin, Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 67

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO THE BACKGROUND CHECK CENTER.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1145, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1145. Criminal background checks.

(b) *Definitions.* –

() “Rap Back System” means as defined under § 8502 of Title 11.

(c) An employer may not employ an applicant for work in a private residence before obtaining a criminal history. Upon request, the criminal history must be provided to the person for whom the services are to be provided, or to the person’s authorized representative upon the applicant’s commencement of work. An applicant’s criminal history report obtained through the BCC’s criminal history screening process is valid for any prospective employer for a period of 3 years from the date of the applicant’s last fingerprinting.

(n) The Department shall promulgate regulations regarding all of the following:

(1) The criteria it uses to determine unsuitability for employment.

(2) The policies and procedures for preparing the criminal history which govern the frequency of criminal record review and updating.

(3) ~~The frequency with which fingerprints must be obtained.~~ The use of the Rap Back System to require any subsequent criminal history of an employee is provided to current and future employers of the employee.

(4) The information that the Department provides in the criminal history about disqualifying and nondisqualifying criminal convictions.

(5) The methods for notifying applicants and employers of the results of the Department’s review, and for providing applicants with the criminal history.

(6) The administrative review process available to a person desiring to contest adverse information.

(7) Other provisions required to achieve the purpose of this section.

SYNOPSIS

This Act codifies that a criminal history report obtained by a home-care agency through the BCC's criminal screening process is valid for 3 years from the date of the applicant's fingerprinting.

The Act further requires the Department to promulgate regulations that require the Rap Back System to notify current and future employers of any subsequent criminal history of the applicant.

Author: Senator Hoffner